

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1178

By: Stark

AS INTRODUCED

An Act relating to service animals; amending 4 O.S. 2021, Section 801, which relates to public accommodations for service animals; making certain acts unlawful; providing penalty; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 4 O.S. 2021, Section 801, is amended to read as follows:

Section 801. A. For purposes of this section:

1. The terms "place of public accommodation", "public accommodation" and "service animal" shall have the same meaning as such terms are defined in 28 C.F.R., Section 36.104. "Service animal" does not include an emotional support animal or a therapy animal;

2. "Emotional support animal" means an animal selected to reside with an individual with a disability that does not work or perform tasks for the benefit of an individual with a disability and does not accompany at all times an individual with a disability; and

1 3. "Therapy animal" means a personal pet who is certified to
2 make therapeutic visits with a trained volunteer to places
3 including, but not limited to, nursing facilities, schools and
4 hospitals to bring therapeutic benefit, comfort and cheer to others.

5 B. A public accommodation may adopt a policy to prohibit
6 animals, except service animals, from entering the place of public
7 accommodation.

8 C. A public accommodation which adopts such a policy shall post
9 a sign in a conspicuous location outside the entrance of the place
10 of public accommodation stating which animals or types of animals
11 are prohibited. Such sign shall also state that service animals are
12 permitted.

13 D. If a public accommodation inquires into the qualification of
14 a service animal, the public accommodation shall comply with 28
15 C.F.R., Section 36.302(c)(6).

16 E. Any person who is not an individual with a disability or is
17 not trained to assist individuals with disabilities, who uses a
18 service animal in an attempt to gain treatment or benefits as an
19 individual with a disability shall, upon conviction, be guilty of a
20 misdemeanor.

21 F. No person shall knowingly present any animal or therapy
22 animal as a service animal or intentionally misrepresent entitlement
23 to an animal in his or her possession as a qualified service animal
24 for the purpose of obtaining any of the rights or privileges set

1 forth in state or federal law for an individual with a disability.
2 Any person who violates this provision shall, upon conviction, be
3 guilty of a misdemeanor.

4 SECTION 2. This act shall become effective November 1, 2025.

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